

Community Guide to the Findings and Conditions

Separate review of the April 14 ZA NOD and July 1 CPC decision
ZCOA2026-0013 | ZA2026-0024 / ZBA2026-0001

Purpose and status key

This unofficial guide summarizes the filed appeal materials and July 1 certified CPC hearing transcript. It separates the ZA and CPC decisions. It is not a legal ruling and does not replace the official record.

Supported / no separate error identified: accurately stated fact, definition, disclaimer, or enforceable requirement. **Partially supported:** evidence supports part, but not all, of the item. **Mixed record / appeal issue:** supporting and unresolved or contrary evidence both exist. **Valid future condition; does not cure pre-approval evidence issue:** enforceable later safeguard, but not itself evidence for a prior CUP finding. **Unsupported as stand-alone mitigation:** a possible or proposed measure without a binding, measurable, enforceable restriction sufficient by itself to support the finding.

I. ZA NOD — April 14, 2026

The ZA NOD contains 12 findings and 3 conditions. March 11 and April 8 transcripts are not available here, so this portion is NOD-and-appeal based; the later CPC hearing is not used to retroactively decide the ZA record.

ZA finding	Status	Why / appeal relevance
1. Church and incidental facilities request	Mixed record / appeal issue	The appeal challenges original scope because record materials depict school/daycare and educational uses; later CPC proceedings addressed removal but do not itself resolve what the ZA record established.
2. Site adequate in size and shape	Mixed record / appeal issue	3.9 acres and no variance are facts; the appeal challenges whether they established adequate access, parking, traffic capacity, drainage, fire access, and full-project capacity.
3. Sufficient ingress/egress; no undue traffic hazards	Mixed record / appeal issue	The NOD made the traffic finding while stating a TIA and possible improvements would occur later. The appeal challenges record support at approval.
4. No adverse neighborhood effect / no character conflict	Mixed record / appeal issue	The appeal challenges whether the NOD reconciled scale, nearby homes, traffic, drainage, lighting, noise, rural character, and plans.
5. Enumerated conditional use	Supported / no separate error identified	Correctly states the use is conditional; that does not establish all other CUP criteria.
6. Applicant intends parking, landscaping, buffers, fencing	Mixed record / appeal issue	The appeal argues intentions are not proof of completed compliance or enforceable mitigation.
7. Friday service could be moved	Unsupported as stand-alone mitigation	The appeal identifies no binding schedule, peak restriction, attendance/vehicle cap, or enforcement mechanism.
8. Opposition speakers reported traffic concerns	Supported / no separate error identified	Accurate report of opposition testimony; it does not resolve traffic.
9. Future TIA; possible improvements; Friday outside peak hour	Mixed record / appeal issue	The appeal challenges reliance on later analysis and the stated Friday peak-hour premise.
10. Conditions protect health, safety, welfare	Mixed record / appeal issue	The appeal identifies unresolved traffic, drainage, emergency-access, lighting, noise, and operating-control questions.
11. Site in Rural Area	Location supported; compatibility appeal issue	Rural Area location is not disputed; the appeal challenges compatibility under the ABC and North Valley Area Plans.
12. Approval limited; no waiver	Supported / no separate error identified	Standard limitation/disclaimer.

ZA conditions

ZA condition	Status	Why / appeal relevance
1. Construction/trade permits; building limited to submitted footprint	Supported / no separate error identified	Standard permit/footprint condition; it does not independently decide traffic, drainage, emergency access, or compatibility.
2. Coordinate with Public Works to reduce impervious surface	Valid future condition; does not cure pre-approval evidence issue	Specific later design guidance; the appeal argues it does not demonstrate drainage/hydrology adequacy at CUP approval.
3. No amplified sound or loudspeakers outside	Supported / no separate error identified	Enforceable outdoor-sound restriction; broader operating impacts remain separate issues.

II. CPC decision — July 1, 2026

The CPC review incorporates the certified July 1 transcript. The record confirms real later-stage safeguards while also documenting unresolved traffic, scope, and site-specific questions at the time of the decision.

CPC finding	Status	Why / record evidence
1. Church and incidental facilities request	Mixed record / appeal issue	Staff said school had become a separate CUP-level use; Applicant withdrew school/daycare; revised materials were accepted. Later discussion still sought program/floor-area clarity. Transcript 82–85, 219–221.
2. CZO definition of church	Supported / no separate error identified	Ordinance definition; it does not independently establish all CUP criteria.
3. Site adequate in size and shape	Mixed record / appeal issue	Updated material showed about 43,000-SF ground-floor footprint with parking/landscaping. Staff called CUP material conceptual and sought clarity. Transcript 83–84, 218–221.
4. Ingress/egress; approach improvements may be required	Mixed record / appeal issue	Public Works described later TIA/mitigation; no project-specific TIA or quantified site trips existed when CPC acted. Transcript 205–214.
5. Mixed uses; proposal adds to mix	Mixed record / appeal issue	Applicant described surroundings/buffers; transcript does not show a complete ABC/North Valley policy analysis. Transcript 87–92, 218–221.
6. Enumerated conditional use	Supported / no separate error identified	Correct zoning observation; separate CUP criteria still apply.
7. Intended parking/buffers/fencing	Partially supported	Applicant described walls/buffer; updated materials were accepted, but final program/floor-area questions remained. Transcript 83, 89–92, 218–221.
8. Friday service could be moved	Unsupported as stand-alone mitigation	Hours may be a possible mitigation tool, but no fixed schedule, cap, or enforcement mechanism was identified. Transcript 206, 210, 213–214.
9. Opposition reported traffic concerns	Supported / no separate error identified	Accurate report; Luna acknowledged regional Alameda congestion. Transcript 204–205.
10. Opposition reported compatibility concern	Supported / no separate error identified	Accurate report of testimony.
11. TIA at building permit; possible improvements	Valid future condition; does not cure pre-approval evidence issue	TIA, mitigation agreement, and improvements were required before permit/opening; no project-specific TIA existed when CPC acted. Transcript 205–214.
12. Roadway jurisdiction	Supported / no separate error identified	Luna identified County, NMDOT, and City roles. Transcript 205–206.
13. Conditions protect health, safety, welfare	Mixed record / appeal issue	Some conditions existed, but traffic, fire review, and grading/drainage were later-stage matters; specificity remained disputed. Transcript 205–216, 218–221.
14. Site in Rural Area	Location supported; compatibility appeal issue	Designation discussion occurred; no policy-by-policy ABC/North Valley analysis appears in cited discussion.
15. Approval limited to church use	Supported as limitation; scope addressed under Finding 1	Standard limitation; remaining program clarity is addressed above.

CPC conditions

CPC condition	Status	Why / record evidence
1. School not allowed	Partially supported; remaining scope/plan issue	Staff said school needed separate CUP treatment; Applicant withdrew it; supplemental material was accepted. Remaining issue is final scope/floor-area specificity. Transcript 82–85, 219–221.
2. Permits and footprint	Supported / no separate error identified	Standard enforceable permit/footprint requirement.
3. 60,000-SF maximum / 43,000-SF footprint	Mixed record / appeal issue	Transcript supports about 43,000-SF ground-floor footprint, but does not independently establish the 60,000-SF cap or a traffic basis for it. Transcript 83, 219–221.
4. Impervious surface coordination	Valid future condition; does not cure pre-approval evidence issue	Valid later design condition; staff said full grading/drainage plan occurs at building permit. Transcript 218–219.
5. No amplified sound outside	Supported / no separate error identified	Staff explained the restriction due to nearby residences; County noise ordinance also applies. Transcript 215–216.
6. Height limited to 26 feet	Supported / no separate error identified	Staff confirmed A-1 maximum 26 feet; Applicant said building would not exceed it. Transcript 90–91, 219.
7. Parking under Section 21	Partially supported	Updated materials showed parking/layout; transcript does not independently test exact Section 21 compliance. Transcript 83, 218–219.
8. Landscaping / Water Conservation	Partially supported	Plan material referenced landscaping and Applicant described trees/walls; exact code compliance not independently tested.

CPC condition	Status	Why / record evidence
9. TIA at building permit	Valid future condition; does not cure pre-approval evidence issue	Public Works confirms safeguard but also confirms trips/impacts were not quantified at CPC decision. Transcript 205–214.
10. NMDOT requirements	Supported in general	NMDOT identified as reviewing agency; exact condition language not independently discussed. Transcript 205–206.
11. Six-foot wall/fence	Partially supported	Applicant described six-foot walls and buffer function; final construction compliance not independently verified. Transcript 89–91.
12. Light Pollution / Night Sky	Supported as code condition	Lighting could be conditioned; exact ordinance-compliance analysis not discussed. Transcript 216–217.
13. Signage under Section 12 / O-1	Supported as code condition	No distinct hearing discussion located.
14. Grading/drainage plan at building permit	Valid future condition; does not cure pre-approval evidence issue	Staff confirmed full grading/drainage plan occurs at building permit. Transcript 218–219.
15. Noise Ordinance compliance	Supported as code condition	Staff confirmed County noise ordinance/outside-amplification restriction; broader analysis not separately completed. Transcript 215–216.

Conclusion

The July 1 record supports real County safeguards and factual statements. It also confirms that project-specific traffic quantification, final grading/drainage review, fire review, and aspects of final program/floor-area specificity were not complete when the CPC acted. The appeal question is therefore whether the available pre-approval record was sufficient for the material CUP findings—not whether a later process existed.

A comparable hearing-based ZA review requires the March 11 and April 8 transcripts or recordings.